



VoxTable Data Processing Addendum

UK GDPR and Australian privacy processing terms

Version 2.1 | Effective 27 August 2026

This Data Processing Addendum (DPA) forms part of the Agreement between the Customer and the Biteperk entity identified by the applicable Order Form. It applies to Personal Data / Personal Information processed by Biteperk on Customer's behalf in connection with VoxTable.

1. Definitions and priority

1.1 Capitalised terms not defined in this DPA have the meanings given in the SaaS Subscription Terms. UK Personal Data means personal data governed by the UK GDPR. Australian Personal Information means personal information governed by the Privacy Act 1988 (Cth). Security Incident means a breach of security leading to accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to Customer Personal Data.

1.2 If this DPA conflicts with the SaaS Subscription Terms on processing of Customer Personal Data, this DPA prevails. A mandatory regional privacy requirement prevails to the extent of conflict.

2. Roles and processing details

2.1 For UK Customer Personal Data processed to provide the Customer-configured Services, Customer ordinarily acts as Controller and Biteperk Ltd as Processor. For Australian Customer Personal Information, Customer determines the purposes for which caller/booking information is collected and Biteperk Pty Ltd handles that information as the contracted service provider on Customer's instructions, subject to the Privacy Act where applicable.

Item	Processing description
Subject matter	AI telephone answering, booking/order handling, call routing, messaging, dashboard, integrations, support and security.
Duration	For the Subscription Term plus the limited retention/backup period stated in the Retention Policy, unless law requires longer.
Nature and purpose	Receive and route calls; understand requests; provide authorised venue information; check availability; create/change/cancel bookings/orders; send confirmations; generate/store recordings or transcripts where enabled; provide dashboard, support, security and related functions.
Data subjects	Callers, diners/guests, prospective customers, venue personnel, Authorised Users and business contacts.
Data types	Name, phone number, email where provided, voice/audio, transcript, booking/order details, date/time, party size, menu/order items, special requests, communication history,

Item	Processing description
	account identifiers, IP/device/security logs and support information.
Sensitive/special-category data	Not intentionally required. Callers may volunteer health/allergy, disability, religious or other sensitive information. Customer should minimise collection and configure escalation where appropriate.

3. Documented instructions

3.1 Biteperk shall process Customer Personal Data only on Customer's documented instructions, including instructions expressed through the Order Form, service configuration, authorised API calls and use of the Services, unless applicable law requires otherwise. This includes instructions relating to international transfers.

3.2 If Biteperk is required by law to process Customer Personal Data other than on Customer's instructions, Biteperk shall inform Customer before the processing unless legally prohibited. If Biteperk reasonably believes an instruction infringes applicable data-protection law, it shall inform Customer and may suspend the affected processing while the parties address the issue.

4. Confidentiality and personnel

4.1 Biteperk shall ensure persons authorised to process Customer Personal Data are bound by confidentiality obligations and receive access only to the extent reasonably necessary for their role.

5. Security

5.1 Biteperk shall implement and maintain appropriate technical and organisational measures having regard to the state of the art, implementation cost, nature/scope/context/purpose of processing and risks to individuals. The baseline measures are set out in Schedule A.

6. Subprocessors

6.1 Customer grants Biteperk general written authorisation to engage subprocessors necessary to provide the Services, subject to the current VoxTable Subprocessor Register.

6.2 Biteperk shall impose written data-protection obligations on each subprocessor that provide an equivalent level of protection for the relevant processing and shall remain responsible for the subprocessor's compliance to the extent required by applicable law.

6.3 For UK Customers, Biteperk shall give reasonable advance written notice of a new material subprocessor that will process Customer Personal Data. Customer may object within 15 days on reasonable data-protection grounds. The parties shall work in good faith on a practical solution; if no reasonable solution is available, Customer may terminate the materially affected Service without early termination charge.

7. Data subject / individual rights

7.1 Taking account of the nature of processing, Biteperk shall provide reasonable assistance by appropriate technical and organisational measures to enable Customer to respond to lawful requests for access, correction/rectification, deletion/erasure, restriction, portability, objection or other applicable rights.

7.2 If Biteperk receives a request directly and acts only as Customer's processor/service provider for the relevant information, Biteperk shall normally direct the requester to Customer unless law requires Biteperk to respond directly.

8. Security Incidents and breach cooperation

8.1 Biteperk shall notify Customer without undue delay after becoming aware of a Security Incident affecting Customer Personal Data and shall provide information reasonably available to Biteperk concerning the nature of the incident, affected data/individuals, likely consequences and remediation measures.

8.2 Biteperk shall take reasonable steps to contain, investigate and remediate the Security Incident and cooperate with Customer's legally required notifications. Notification under this clause is not an admission of fault or liability.

9. Compliance assistance

9.1 Taking account of the nature of processing and information available to Biteperk, Biteperk shall provide reasonable assistance with Customer's security obligations, data-breach assessment/notification, data protection impact assessments and prior regulatory consultation where required by applicable law.

10. Audits and information

10.1 Biteperk shall make available information reasonably necessary to demonstrate compliance with its processor obligations. Biteperk may satisfy routine requests first through current security/privacy documentation, independent assurance reports or completed questionnaires where appropriate.

10.2 Where that information is insufficient, Customer may conduct or appoint an independent auditor to conduct an audit no more than once in any 12-month period, unless a Security Incident, regulator request or reasonable evidence of material non-compliance justifies an additional audit. Audits must be on reasonable notice, during normal business hours, subject to confidentiality/security controls and designed to avoid unreasonable disruption or access to another customer's information. Customer bears its audit costs unless the audit identifies material non-compliance by Biteperk.

11. Return and deletion

11.1 At the end of the Services, Biteperk shall, at Customer's choice and subject to the Retention Policy, delete or return Customer Personal Data and delete remaining copies unless applicable law requires storage. Data in backups may remain beyond the primary deletion date only for the normal backup lifecycle, shall be protected and put beyond ordinary use, and shall be deleted on the applicable cycle.

12. International and cross-border processing

12.1 Biteperk may process Customer Personal Data in the locations identified in the Subprocessor Register and Privacy Policy. Biteperk shall not make a restricted transfer of UK Personal Data unless the transfer is permitted under UK data-protection law and, where required, is covered by an appropriate safeguard and transfer assessment.

12.2 For Australian Personal Information disclosed to an overseas recipient, Biteperk shall take reasonable steps appropriate to APP 8 to ensure the recipient handles the information consistently with applicable APP requirements, subject to any statutory exception.

13. Independent-controller processing

13.1 This DPA does not apply to processing for which Biteperk independently determines the purposes and means, such as limited business-account administration, fraud/security records, legal compliance and direct website enquiries. Such processing is described in the Biteperk Privacy Policy.

14. AI training restriction

14.1 Biteperk shall not use identifiable caller audio, transcripts, booking/order details or other Customer Personal Data to train general-purpose AI models or models made available to unrelated customers. This does not prevent security testing, service-quality evaluation using effectively de-identified data, or Customer-specific configuration/tuning performed on Customer's instructions and isolated from unrelated customers.

Schedule A - Baseline Technical and Organisational Measures

- Access control: role-based access, least privilege, joiner/mover/leaver controls and periodic access review.
- Authentication: strong authentication for administrative access and multi-factor authentication where technically supported and appropriate.
- Encryption: TLS or equivalent for data in transit; encryption at rest for supported cloud storage and databases.
- Environment security: segregated production/non-production environments, controlled production access and secure configuration/change management.
- Logging and monitoring: security and operational logging proportionate to detecting misuse, anomalies and service incidents.
- Vulnerability management: dependency management, patching, secure development practices and risk-based remediation.
- Backups and resilience: protected backups and recovery procedures appropriate to the service tier.
- Incident response: documented escalation, containment, investigation, remediation and notification procedures.
- Supplier management: due diligence, written processing/security obligations and ongoing management of material subprocessors.
- Data minimisation and retention: collect/process only data reasonably needed for the service and delete according to the Retention Policy.
- Personnel: confidentiality obligations, security awareness and access limited to personnel with a legitimate business need.

Schedule B - United Kingdom Processing Schedule

- Processor: Biteperk Ltd for UK Customer Personal Data unless the Order Form identifies another lawful arrangement.
- Article 28: clauses 2-11 are intended to satisfy the mandatory controller-processor terms, including instructions, confidentiality, security, subprocessors, rights assistance, controller assistance, deletion/return and audit.
- Transfers: where Biteperk Ltd makes a restricted transfer to Australia, the United States or another non-adequate destination, Biteperk shall implement an appropriate UK safeguard and complete the required transfer assessment/data-protection test before relying on that transfer.
- Customer remains responsible for its own controller obligations, including lawful basis, transparency to callers, records of processing, DPIA where required and instructions to Biteperk.

Schedule C - Australia Processing Schedule

- Service provider: Biteperk Pty Ltd for Australian Customer Personal Information unless the Order Form states otherwise.
- Where the Privacy Act applies, Biteperk shall take reasonable steps to protect Personal Information from misuse, interference, loss and unauthorised access, modification or disclosure and to destroy/de-identify it when no longer needed, subject to legal retention requirements.
- Australian default deployment: booking/order and call-summary records are hosted in Australia; call recordings and transcripts are deleted after 30 days by default, with a venue-selectable retention of up to 90 days where configured; real-time voice AI processing may occur in the United States under written data-protection terms.
- Where an eligible data breach may involve both parties, the parties shall cooperate so required notifications can be made efficiently and without unnecessary duplication, subject to applicable law.